

SENATE No. 3150

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 9, 2026.

The committee on Revenue to whom was referred the petition (accompanied by bill, Senate, No. 1927) of Michael D. Brady, Kathleen R. LaNatra, Christopher Richard Flanagan and Norman J. Orrall for legislation relative to the separation of agricultural land for renewable energy purposes, report the accompanying bill (Senate, No. 3150).

For the committee,
James B. Eldridge

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An Act relative to the separation of agricultural land for renewable energy purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 17 of chapter 61A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting, after the first sentence, the following: -

3 Notwithstanding the previous sentence, if the portion of land is contiguous land not
4 actively devoted to agricultural or horticultural uses and is so separated to serve as the site of a
5 renewable energy generating source, as defined in subsection (b) of section 11F of chapter 25A,
6 the separated land shall not be subject to the option to purchase under section 14 and liability for
7 conveyance or roll-back taxes otherwise applicable at such time. Such land shall instead be
8 subject to liability for 50 percent of such otherwise applicable roll-back taxes which shall be due
9 and payable at the time it commences serving as the site of a renewable energy generating
10 source. If the use of the separated land as a renewable energy generating source permanently
11 ceases, or does not commence, and the land is sold for or converted to a use other than
12 agricultural or horticultural, the land shall become subject to the option to purchase and
13 conveyance or roll-back taxes shall be assessed for the balance of the amount that would have
14 been assessed at the time of the separation. The separated land subject to this provision shall not

- 15 exceed 10 percent of the land valued, assessed and taxed under this chapter from which it was
- 16 separated and not greater in total than 15 acres of the contiguous portion of such land not
- 17 actively devoted to agricultural or horticultural uses.